

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Danny Rivera	Team: Team # 1	CCRB Case #: 201001246	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 01/22/2010 , Saturday, 01/23/2010 12:30 AM	Location of Incident: § 87(2)(b)	Precinct: 77	18 Mo. SOL 7/23/2011	EO SOL 7/23/2011	
Date/Time CV Reported Sat, 01/23/2010 5:02 AM	CV Reported At: IAB	How CV Reported: Fax	Date/Time Received at CCRB Wed, 01/27/2010 1:54 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Mark Jablonski	03353	922540	077 PCT
2. POM Jason Morales	08213	933054	077 PCT
3. POM David Afanador	31730	936100	077 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Matthew Granahan	26635	926899	077 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Mark Jablonski	Abuse: SGT Mark Jablonski supervised the stop of § 87(2)(b)	§ 87(2)(b)
B.POM David Afanador	Abuse: PO David Afanador stopped § 87(2)(b)	§ 87(2)(b)
C.POM David Afanador	Abuse: PO David Afanador frisked § 87(2)(b)	§ 87(2)(b)
D.POM David Afanador	Abuse: PO David Afanador searched § 87(2)(b)	§ 87(2)(b)
E.POM David Afanador	Discourtesy: PO David Afanador spoke obscenely to § 87(2)(b)	§ 87(2)(b)
F.POM David Afanador	Force: PO David Afanador used a chokehold against § 87(2)(b)	§ 87(2)(b)
§ 87(4-b), § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

§ 87(2)(b) filed this complaint in person at the 77th Precinct stationhouse on January 23, 2010; it was forwarded to the Internal Affairs Bureau on the same date. The complaint was then forwarded to the Civilian Complaint Review Board under IAB log #10-04291 on January 27, 2010 (encl. 3). § 87(2)(b) stated that at approximately 12:30 a.m. on January 23, 2010, he was walking along § 87(2)(b) between Park Place and Sterling Place in Brooklyn when he was stopped by three officers, identified via investigation as PO David Afanador, Sergeant Mark Jablonski, and PO Jason Morales of the 77th Precinct. The following allegations were raised as a result of this interaction:

- **Allegation A – Abuse of Authority: Sergeant Mark Jablonski supervised the stop of § 87(2)(b)**

- **Allegation B – Abuse of Authority: PO David Afanador stopped § 87(2)(b)**

§ 87(2)(b), § 87(2)(g)
§ 87(2)(b)
§ 87(2)(b)

- **Allegation C – Abuse of Authority: PO David Afanador frisked § 87(2)(b)**

§ 87(2)(b), § 87(2)(g)
§ 87(2)(b)
§ 87(2)(b)

- **Allegation D – Abuse of Authority: PO David Afanador searched § 87(2)(b)**

§ 87(2)(b)

- **Allegation E – Discourtesy: PO David Afanador spoke obscenely to § 87(2)(b)**

§ 87(2)(b)

- **Allegation F –Force: PO David Afanador used a chokehold against § 87(2)(b)**

§ 87(2)(b), § 87(2)(g)
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- § 87(4-b), § 87(2)(g) § 87(2)(b)

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Results of Investigation

Civilian Statement(s)

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) § 87(2)(b)

§ 87(2)(b) provided a phone statement on February 5, 2010 (encl. 9), was interviewed at the CCRB on February 9, 2010 (encl. 10A-10C), and provided a follow-up phone statement on March 2, 2010 (encl. 11). These statements, as well as his intake statement, were generally consistent. At approximately 12:30 a.m. on January 23, 2010, § 87(2)(b) was on his way home after visiting a friend's house. § 87(2)(b) did not have anything in his hands and did not stop to speak with anyone prior to the incident, which took place just outside a § 87(2)(b), identified through investigation as an institution called the § 87(2)(b) between § 87(2)(b) and § 87(2)(b) in Brooklyn. § 87(2)(b) who wore a black baseball cap, black and white sneakers, and black jeans during the incident, was stopped approximately one block away from his home, located at § 87(2)(b). While walking on § 87(2)(b) § 87(2)(b) saw an unknown pedestrian walk by him. § 87(2)(b) then noticed an unmarked black Impala, out of which three officers, identified via investigation as PO David Afanador, Sergeant Mark Jablonski, and PO Jason Morales of the 77th Precinct, exited. § 87(2)(b) did not recall the officers' positioning in the car, other than that PO Morales had been the driver. The vehicle was moving against traffic on § 87(2)(b) which is a two-lane street. When he saw the officers, § 87(2)(b) thought that they were going to stop the individual he had just seen walk past him.

However, one of the officers, PO Afanador (white male, 5'2" to 5'3" tall, heavysset, in plainclothes, with a slight beard around the jaw-line and wearing a skullcap), told § 87(2)(b) not to move. PO Afanador also asked § 87(2)(b) if he was armed. § 87(2)(b) raised his hands and told PO Afanador that he did not have anything on him and that PO Afanador could search him. PO Afanador started to frisk § 87(2)(b)'s pockets and search him aggressively, and jostled his jeans by the belt, which became damaged when PO Afanador yanked it. PO Afanador searched the rear pockets of § 87(2)(b)'s jeans—in which he had some money, a piece of identification, and a Metrocard—and tried to pull open § 87(2)(b)'s jacket, at which time § 87(2)(b) asked PO Afanador if he could open it himself. After § 87(2)(b) opened his own jacket and told PO Afanador that he could search inside, PO Afanador became angry, and told § 87(2)(b) not to touch him and said, "Who the fuck do you think you are?" and "You ain't fucking nobody." In a phone statement provided prior to his in-person interview, § 87(2)(b) stated that PO Afanador allegedly pushed, shoved, and choked him. PO Afanador directed other obscene phrases at § 87(2)(b) but he did not exactly recall what they were. In a phone statement, § 87(2)(b) indicated that PO Afanador had "ripped open" the coat that he was wearing.

§ 87(2)(b) then asked PO Afanador what it was PO Afanador was doing, after which PO Afanador started "grabbing on" him. § 87(2)(b) protested this behavior, telling PO Afanador that he had violated his rights—especially since PO Afanador did not explain his reasons for

stopping him and because he did not request to see § 87(2)(b)'s identification. § 87(2)(b) told PO Afanador to stop grabbing him by his jacket. PO Afanador then "choked" § 87(2)(b) but without restricting his breathing. PO Afanador's hands were on § 87(2)(b)'s neck for a couple of seconds, after which § 87(2)(b) grabbed PO Afanador's jacket and slapped PO Afanador's hands off. As soon as § 87(2)(b) slapped PO Afanador's hands off his person, the two started "tussling"—pushing each other back and forth—for approximately ten seconds to one minute. § 87(2)(b) behaved this way because he refused to be "another black man on the news for getting beat up and harassed."

As the tussling was taking place, and after an unknown passerby said "Yo—that ain't right," PO Afanador's partners, PO Morales (white male, no other description) and Sergeant Jablonski (white male, thin build, no other description), came over and separated the two men. PO Morales asked PO Afanador if he wanted to leave the location. PO Morales and Sergeant Jablonski, who were standing a few feet away, only observed the incident and were not otherwise involved. § 87(2)(b) told PO Afanador, PO Morales, and Sergeant Jablonski not to leave, and told the officers that he was going to call his mother; however, he was unable to contact her as she had been asleep. Prior to the officers leaving the location, § 87(2)(b) saw, and managed to memorize, the license plate number of their vehicle, § 87(2)(b). After the incident ended—approximately ten to fifteen minutes after it began—§ 87(2)(b) arrived at home and called 911, at which time the operator told him to go to a precinct stationhouse. § 87(2)(b) then went to the 77th Precinct stationhouse, where he was made to wait two hours before filing a civilian complaint.

NYPD Statement(s):

Subject Officer: PO DAVID AFANADOR

- § 87(2)(b)
- *On January 23, 2010, PO Afanador worked in plain clothes and was assigned to the 77th Precinct's Anti-Crime team; he was partnered with Sergeant Mark Jablonski and PO Jason Morales, and used an unmarked vehicle.*

Memo Book

PO Afanador's memo book entries (encl. 16A-16B) aligned with his CCRB testimony. At 12:32 a.m., a male was stopped at § 87(2)(b) and § 87(2)(b) in Brooklyn; at 12:42 a.m., a UF-250 report was prepared regarding an unidentified black male who was suspected of Criminal Possession of a Weapon.

Stop & Frisk Report

The Stop & Frisk report prepared for this incident (enc. 17A-17B) reflects that § 87(2)(b) was stopped for suspicion of Criminal Possession of a Weapon. The circumstances that lead to the stop include PO Afanador seeing a suspicious bulge or object in his waistband; additional factors leading to the stop are that the area in which § 87(2)(b) was stopped has a high incidence of CPW, and that the time/day of the week corresponds to criminal activity. The report indicates that § 87(2)(b)'s refusal to answer the officers' questions, as well as the observance of a waistband bulge, led to the frisk of § 87(2)(b). It describes his demeanor as "combative."

CCRB Statement

PO David Afanador was interviewed at the CCRB on December 17, 2010 (encl. 18A-18B) and on January 13, 2011 (encl. 19A-19B). At approximately 12:30 a.m. on January 23, 2010, PO Afanador sat in the backseat of an unmarked vehicle with tinted windows being operated by one of his partners, PO Jason Morales. Their supervisor, Sergeant Mark Jablonski, sat in the front passenger seat. While inside the vehicle PO Afanador observed a black male, § 87(2)(b) who was walking northbound on § 87(2)(b) in Brooklyn, making “furtive movements” around his midsection. PO Afanador clarified that by “furtive movements” he meant that § 87(2)(b) was walking very closely to a wall while reaching under his coat, and subsequently “played” with the area around the middle of his waist; after removing his hands, § 87(2)(b) walked approximately twenty feet before repeating this action. Over the course of his professional experience, PO Afanador has made numerous arrests for gun possession based upon civilians making the same kind of motions. When asked where § 87(2)(b) had his hands positioned, PO Afanador stated that his hands were near his belt buckle, and that he made “several adjustments to the area.” The only other motions that § 87(2)(b) made which heightened PO Afanador’s suspicions that he had committed a crime was when he looked behind him a few times. PO Afanador clarified that this particular action, along with § 87(2)(b) walking closely along a wall and fidgeting with his waistband, led him to believe that § 87(2)(b) was involved in criminal activity. Believing that § 87(2)(b) was armed, PO Afanador instructed PO Morales to pull over, and said something to the effect of, “I’m going to stop § 87(2)(b)

PO Afanador, who had his shield attached to a cord around his neck, exited the vehicle and approached § 87(2)(b) PO Afanador said, “Police—can I talk to you for a second?” and instructed § 87(2)(b) to stop, an order with which he complied. PO Afanador also asked § 87(2)(b) if he had any weapons. PO Afanador, intending to frisk § 87(2)(b) then went to the area around his waist where he had seen him “fidgeting.” § 87(2)(b) however, grabbed PO Afanador’s hands and pushed them away. PO Afanador, in turn, pulled back and grabbed § 87(2)(b)’s hands, told him “to relax,” and informed him that he needed be frisked in order to ensure that he was not in possession of any weapons. § 87(2)(b) responded, “No, you’re not going to do that.” Despite § 87(2)(b)’s objections, PO Afanador proceeded to frisk § 87(2)(b)’s waistband and legs. PO Afanador, however, did not search § 87(2)(b)

As PO Afanador was conducting the frisk, § 87(2)(b) became “confrontational” by cursing at the officer and saying “not-nice things.” PO Afanador did not recall the exact nature of the curses that § 87(2)(b) used against him, and did not recall where his partners were positioned as he was conducting the frisk. Given the intensity of the situation, PO Afanador’s attention was squarely on § 87(2)(b) PO Afanador also did not recall if his partners had said anything to § 87(2)(b) PO Afanador did not damage § 87(2)(b)’s property, including his belt, and did not direct obscenities to him, including, “You ain’t fucking nobody” and “Who the fuck do you think you are?” Neither of PO Afanador’s partners damaged § 87(2)(b)’s property or used profane language during the incident. PO Afanador also did not use a chokehold against § 87(2)(b) his partners had not taken such action, either.

PO Afanador did not recall if § 87(2)(b) had made some verbal indication that he was free to frisk and search him; PO Afanador noted that he did not search § 87(2)(b) At his second CCRB interview, PO Afanador was presented with the UF-250 that was prepared for the stop, which reflects that § 87(2)(b) was observed having a “suspicious bulge.” PO Afanador was then asked why he did not mention having seen a “suspicious bulge” on § 87(2)(b) during his first

CCRB interview, and if he could explain the discrepancy between his previous statement and what was written on the UF-250. PO Afanador noted that the bulge turned out to be a cellular phone holster—which he felt while conducting the frisk—and which he saw after lifting § 87(2)(b)'s shirt. PO Afanador did not provide a description as to the size and shape of the holster, as he did not remove it from § 87(2)(b). When asked if he observed the bulge prior to approaching him or just once the frisk was completed, PO Afanador noted that he had only seen § 87(2)(b) “playing with something,” and that he did not know what the item was prior to approaching him. PO Afanador was unable to see the outline of a bulge on § 87(2)(b) and he did not recall where Sergeant Jablonski and PO Morales were positioned as he conducted the frisk.

Upon the completion of the frisk, PO Afanador determined that § 87(2)(b) was not in possession of any weapons, and subsequently asked him for his name and identification, but he refused to provide this information, saying, “No, I’m not giving you anything.” PO Afanador then repeatedly told § 87(2)(b) to leave the location; however, § 87(2)(b) continued arguing with him and later attempted to engage him in a confrontation. PO Afanador and his partners then returned to their vehicle, at which time § 87(2)(b) approached PO Afanador in an “aggressive manner,” leading him to push § 87(2)(b) away in order to keep him at arm’s length. This was the only point during the incident during which PO Afanador—who did not know if § 87(2)(b) was about to strike or lunge at him—felt as though his safety, and that of his partners, was threatened. PO Afanador and his partners then returned to their vehicle and left the location.

Witness Officer: SERGEANT MARK JABLONSKI

- § 87(2)(b)
- *On January 23, 2010, Sergeant Jablonski worked in plain clothes and was assigned as the 77th Precinct’s Anti-Crime supervisor; he was partnered with PO David Afanador and PO Jason Morales, and used an unmarked vehicle.*

Memo Book

Sergeant Jablonski did not have any entries in his memo book (encl. 14A-14B) regarding the incident.

CCRB Statement

Sergeant Mark Jablonski was interviewed at the CCRB on December 8, 2010 (encl. 15A-15B). § 87(2)(g)

At some point during the incident, one of Sergeant Jablonski’s partners—the sergeant did not recall which one—pointed out a young male, § 87(2)(b) walking along § 87(2)(b) in Brooklyn. Either PO Afanador or PO Morales noted that § 87(2)(b) “possibly had something in his hand[s]” or at his side. Sergeant Jablonski, however, had not seen anything in § 87(2)(b)’s hands or at his side, and he had not seen § 87(2)(b) do anything more than walking down the street. Shortly thereafter, Sergeant Jablonski and his partners pulled up to § 87(2)(b) exited their vehicle, and stopped § 87(2)(b) in the vicinity of § 87(2)(b).

When asked if he suspected that § 87(2)(b) had been armed or was otherwise a threat to him or his partners, Sergeant Jablonski repeated that § 87(2)(b)’s behavior was “combative” and that he made statements demonstrating such behavior; the sergeant, however, did not recall the exact nature of these statements, and stated that § 87(2)(b) refrained from using any obscenities.

The officers then attempted to explain to § 87(2)(b) what it was they were doing in the area and why they had stopped him, but he remained “aggressive.” Eventually, one of the officers—Sergeant Jablonski did not recall which one—tried to discover what § 87(2)(b) had been holding; it was eventually discovered via a frisk that § 87(2)(b) was in possession of a cellular phone.

Witness Officer: PO JASON MORALES

- § 87(2)(b)
- *On January 23, 2010, PO Morales worked in plain clothes and was assigned to the 77th Precinct’s Anti-Crime team; he was partnered with Sergeant Mark Jablonski and PO David Afanador, and used an unmarked vehicle.*

Memo Book

PO Morales did not have any memo book entries (encl. 20A-20B) regarding the incident.

CCRB Testimony

PO Jason Morales was interviewed at the CCRB on December 17, 2010 (encl. 21A-21B).

§ 87(2)(g)
PO Morales recalled very little of the incident. PO Morales was driving RMP #§ 87(2)(b) when he became aware that a man was walking closely to a wall and “shuffling around his waistband.” One of his partners said something to the effect of, “Let’s grab this guy—he’s playing with his waistband.” However, PO Morales had not seen § 87(2)(b) act in such a manner. At this point, PO Afanador and Sergeant Jablonski exited the vehicle and approached the man. PO Morales stood behind his partners, but did not recall observing or committing any of the allegations.

Witness Officer: PO MATTHEW GRANAHAN

- § 87(2)(b)
- *On January 23, 2010, PO Granahan worked from 8:30 p.m. until 5:05 a.m. in plain clothes and was assigned to the 77th Precinct’s Anti-Crime team.*

Memo Book

PO Granahan did not have entries in his memo book regarding the incident (encl. 12A-12C).

CCRB Statement

PO Granahan was interviewed at the CCRB on September 3, 2010 (encl. 13A-13B). PO Granahan did not recall the incident. During the interview it was determined that PO Granahan was not present for the incident in question.

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of February 14, 2011 with regard to the incident (encl. 26A-26B).

Civilian(s) Criminal History

- As of March 21, 2011, Office of Court Administration records reveal no criminal convictions for § 87(2)(b).

Civilian(s) CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 7).

Subject Officer(s) CCRB History

- PO David Afanador has been a member of the service for six years and there are no substantiated CCRB allegations against him (encl. 5).
- Sergeant Mark Jablonski has been a member of the service for twelve years and there are no substantiated CCRB allegations against him (encl. 6).

Conclusion

Identification of Subject Officer(s)

PO David Afanador and Sergeant Mark Jablonski admitted having had an interaction with § 87(2)(b). A stop allegation is being pleaded against Sergeant Jablonski, as the group's Anti-Crime supervisor, because he oversaw, and was ultimately responsible for, the actions of his subordinate officers. However, the search and frisk allegations are being pleaded against PO Afanador alone, as he admitted to making the observations that led to the subsequent interaction and admitted that he was the officer who first approached and spoke to § 87(2)(b).

Investigative Findings and Recommendations

Allegation A – Abuse of Authority: Sergeant Mark Jablonski supervised the stop of § 87(2)(b)

Allegation B – Abuse of Authority: PO David Afanador stopped § 87(2)(b)

It is undisputed that PO Afanador stopped § 87(2)(b) in the vicinity of § 87(2)(b). While the exact sequence of events is not clear, there is no dispute that PO Afanador instructed § 87(2)(b) to stop, asked him if he was armed, and reached out to touch § 87(2)(b). § 87(2)(b), § 87(2)(g)

§ 87(2)(b). An officer can forcibly stop and detain a person when the officer has a reasonable suspicion that the person has committed, is committing, or is about to commit a felony or misdemeanor. CPL § 140.50 (1). Reasonable suspicion has itself been defined as that quantum of knowledge sufficient to induce an ordinarily prudent and cautious man to believe criminal activity is at hand. Further, to justify such an intrusion, the police officer must indicate specific and articulable facts which, along with any logical deductions, reasonably prompted that intrusion. People v. Cantor, 36 N.Y.2d 106, 112-113 (1975). § 87(2)(g)

§ 87(2)(g)

§ 87(2)(b), § 87(2)(g)

Allegation C – Abuse of Authority: PO David Afanador frisked § 87(2)(b)

§ 87(2)(b) alleged that PO Afanador frisked him, a charge which PO Afanador confirmed. CPL § 140.50 (3) reflects that a police officer may search an individual for deadly weapons whenever he reasonably suspects that he is danger of physical injury. § 87(2)(b), § 87(2)(g)

Allegation D – Abuse of Authority: PO David Afanador searched § 87(2)(b)

Allegation E – Discourtesy: PO David Afanador spoke obscenely to § 87(2)(b)

Allegation F – Force: PO David Afanador used a chokehold against § 87(2)(b)

§ 87(2)(b) alleged that PO Afanador searched him; damaged his belt during a search; said, “Who the fuck do you think you are?”, among other obscene phrases; and used a chokehold against him. PO Afanador denied the allegations. Similarly, Sergeant Jablonski and PO Morales denied seeing PO Afanador take such actions against § 87(2)(b) § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g), § 87(4-b) [Redacted]
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Team: One

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
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